homestead application shall be made within a period of time to be specified by the public notice, except in those cases where a preference right is being exercised, in which event the period provided by law for the exercise of the preference right shall control.

Failure to so make such homestead application within the period prescribed will entitle the Board to approve another application for the same unit and continue this procedure, if necessary, until an approved applicant makes a homestead entry.

Order opening lands. Each public notice or order opening project lands will contain detailed instructions as to the qualifications necessary for prospective entrymen, including required standards of industry, experience, character and capital, and the procedures under which such qualifications will be determined.

J. A. KRUG,
Secretary of the Interior.

[F. R. Doc. 46-9463; Filed, June 4, 1946; 12:39 p. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[SO 518, Amdt. 2]

PART 95—CAR SERVICE

RESTRICTIONS ON HOLDING POTATOES FOR ORDERS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 4th day of June A. D. 1946.

Upon further consideration of Service Order No. 518, (11 F.R. 5603), as amended (11 F.R. 5786), and good cause appearing therefor: *It is ordered,* That:

Service Order No. 518, as amended, be, and it is hereby, further amended by substituting the following paragraph (a) in lieu of paragraph (a) thereof:

(a) *Restriction on holding cars for orders, reconsignment or diversion*—(1) *At Berkley, Va.* The Norfolk Southern Railway Company shall not hold for orders, reconsignment or diversion at Berkley (Norfolk) Virginia, any railroad freight car or refrigerator car, loaded with potatoes.

(2) *At Rocky Mount, N. C. and Petersburg, Va.* The Atlantic Coast Line Railroad Company shall not hold for orders, reconsignment or diversion, at Rocky Mount, North Carolina or at Petersburg, Virginia, any railroad freight car or refrigerator car, loaded with potatoes.

(3) *At Richmond, Va.* The Atlantic Coast Line Railroad Company or the Richmond, Fredericksburg, and Potomac Railroad Company shall not hold for orders, reconsignment or diversion at Richmond, Virginia, any railroad freight car or refrigerator car, loaded with potatoes, shipped on or after the effective date of this amendment.

It is further ordered, That this amendment shall become effective at 7:00 a. m., June 5, 1946; that a copy of this amendment shall be served upon the Richmond, Fredericksburg, and Potomac Railroad Company, The Norfolk Southern Railway Company and the Atlantic Coast Line Railroad Company, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 46-9502; Filed, June 5, 1946; 11:04 a. m.]

Chapter II—Office of Defense Transportation

[Supp. Administrative Order ODT 1-5B]

ACTING ASSISTANT DIRECTOR, RAILWAY TRANSPORT DEPARTMENT

DELEGATION OF AUTHORITY

Pursuant to § 503.5, paragraph (b) of Administrative Order ODT 1, as amended (8 F.R. 6001; 9 F.R. 4615):

1. J. P. Kiernan, Acting Assistant Director, Railway Transport Department, Office of Defense Transportation, is hereby authorized to execute and issue in his discretion, subject to such terms and conditions as he may prescribe, and in the name of the Director of the Office of Defense Transportation, the special permits contemplated by § 500.73 of General Order ODT 18A, as amended (8 F.R. 14477; 9 F.R. 116, 7528), and the special permits contemplated by General Order ODT 1, as amended (7 F.R. 3046, 3213, 3753, 9744), or as such orders may be hereafter amended, revised, or reissued.

2. The exercise of the powers and authority conferred by this order shall be subject to the general control and supervision of the Director of the Office of Defense Transportation and the Director, Railway Transport Department, Office of Defense Transportation.

Supplementary Administrative Order ODT 1-5A (10 F.R. 4360), is hereby revoked.

Issued at Washington, D. C., as of the 23d day of May 1946.

A. H. GASS,
Director, Railway Transport Department, Office of Defense Transportation.

[F. R. Doc. 46-9475; Filed, June 4, 1946; 4:40 p. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Office of the Secretary.

INHABITANTS OF NATIVE VILLIAGE OF DIOMEDE, ALASKA

PROCLAMATION DESIGNATING NATIVE RESERVATION

Pursuant to authority vested in the Secretary of the Interior by section 2 of the act of May 1, 1936, 49 Stat. 1250 (U.S.C., title 48, sec. 358a), there is hereby designated as a native reservation for the use and occupancy of the native inhabitants of the village of Diomede, Alaska, and vicinity, the Island of Little Diomede, which is located in Latitude 65°41′ N. and Longitude 168°55′ W., which includes approximately 1.43 acres previously reserved by Executive Order No. 5289, dated March 4, 1930, for educational purposes, together with the waters adjacent thereto within 3,000 feet from the shore line at mean low tide. Little Diomede Island aggregates approximately 3,000 acres.

This order shall be subject to any valid existing rights or claims acquired prior to the date hereof and shall become effective only upon its approval by a majority vote of the natives residing in the above-described area, voting in the manner prescribed by the said section 2 of the act of May 1, 1936.

Done in the City of Washington, D. C., this 22d day of April 1946.

J. A. KRUG,
Secretary of the Interior.

[F. R. Doc. 46-9476; Filed, June 5, 1946; 10:30 a. m.]

DEPARTMENT OF AGRICULTURE.

Production and Marketing Administration.

[P. & S. Docket No. 311]

MARKET AGENCIES AT KANSAS CITY STOCK YARDS

NOTICE OF PETITION FOR MODIFICATION

By a document filed on May 14, 1946, the respondents requested an increase in certain of the temporary rates and charges being assessed by them at the Kansas City Stock Yards.

By orders entered in this docket on June 14, 1933, and October 14, 1937, the Secretary prescribed reasonable rates and charges to be observed by the respondents for their services as market agencies at the Kansas City Stock Yards. On December 13, 1941, an order was entered suspending, for a period of one year, the rates and charges provided in the aforesaid orders and prescribing new rates and charges during the period of suspension. Orders entered yearly thereafter continued in effect the temporary rates and charges provided in the